CAPIRO, INC. SUBSCRIPTION AGREEMENT

Formal Document

This Subscription Agreement ("Agreement" or "SA") is entered into as of the date Client accepts it electronically through the System, by and between Capiro, Inc., a Delaware corporation ("Capiro"), and the entity on whose behalf this Agreement is accepted ("Client"). Capiro and Client are each a "Party" and together the "Parties."

Client's plan, Portfolio Slot count, and billing election, as selected during account setup and recorded by the System, together with this Agreement, constitute the binding commercial terms between the Parties (see Section 2.7 and Exhibit A). The individual who accepts this Agreement on Client's behalf represents they are authorized to bind Client, and this Agreement binds Client together with every individual Client subsequently authorizes to access the System (see Section 2.2).

> IMPORTANT NOTICE: THIS AGREEMENT CONTAINS SIGNIFICANT DISCLAIMERS OF WARRANTY, LIMITATIONS OF LIABILITY, DATA SECURITY PROVISIONS, AND BINDING ARBITRATION TERMS. PLEASE READ THIS AGREEMENT IN ITS ENTIRETY BEFORE ACCEPTING.

SECTION 1: DEFINITIONS

Account Type: the designation identifying Client as either (a) a Lobbying Firm or External Advisor representing third-party clients before Congress, or (b) an In-House Government Affairs Team advancing its own programs before Congress.

Agreement: this Subscription Agreement, together with all Order Forms, Exhibits, and written amendments incorporated by reference.

AI Model: the artificial intelligence and machine learning models, algorithms, and associated infrastructure operated by Capiro or its authorized third-party providers to generate System Output.

AI Usage: Client's use of AI-enabled functions within the System, including AI-generated drafting, summarization, research, document generation, targeting recommendations, and other AI-enabled workflow functions, as measured by Capiro's then-current usage measurement methodology.

AI Usage Charges: the monthly charges owed by Client for AI Usage during a billing period, calculated under Capiro's then-current AI usage pricing schedule and billed in arrears as described in Section 12.

Approval Gate: a checkpoint within a Submission Workflow at which Client must affirmatively review and authorize Draft Output, recipient lists, timing, or other workflow decisions before the workflow may proceed.

Authorized User: an individual authorized by Client to access and use the System under Client's account, including Client's employees, contractors, and other personnel Client invites onto the System.

Capiro IP: the System, AI Models, software, platform architecture, APIs, workflows, submission logic, congressional office monitoring methodology, databases, documentation, templates, prompts, orchestration logic, and all improvements or derivatives of the foregoing.

Client Content: documents, program descriptions, capability statements, contact information, client and program profiles, meeting notes, submission history, and other materials Client uploads or inputs into the System.

Client Output: documents, memoranda, submission packages, form completions, and other content generated by the System from Client Content or Client inputs, including Draft Output and Final Output.

Client Profile: a Profile associated with one LDA-registered entity represented by a Lobbying Firm or External Advisor. Each Client Profile consumes one Portfolio Slot while Active or Paused.

Congressional Office Data: data on congressional office portal requirements, deadlines, form specifications, and intake procedures, sourced from Government Data, public sources, and Capiro's proprietary monitoring.

Draft Output: System Output that has not been transitioned to Final Output through completion of all required Approval Gates.

Final Output: System Output affirmatively approved by Client through all required Approval Gates.

Government Data: data sourced from third-party government databases and public sources, including Congress.gov, SAM.gov, LDA.gov, congressional office portals, and agency publications.

Intellectual Property Rights: all patents, copyrights, trademarks, trade secrets, and other intellectual or industrial property rights in any jurisdiction.

Order Form: the record of Client's Account Type, Portfolio Slot count, Slot Rate, Term, and payment election, created through Client's electronic selections during System onboarding or through a mutually executed ordering document, as further described in Section 2.7 and Exhibit A.

Payment Module: the optional client portal and payment processing module made available through the System, if activated.

Portfolio: the organizational layer in the System in which Client manages Profiles and active engagements.

Portfolio Slot: the platform unit of capacity corresponding to one active Profile within Client's Portfolio. A Profile with status Active or Paused consumes one Portfolio Slot; an Archived Profile does not.

Predictive Analytics: priority scoring, member intelligence, outcome likelihood data, and similar analytical outputs generated by the System.

Profile: either a Client Profile or Program Profile, as applicable.

Program Profile: a Profile associated with one distinct federal program, funded initiative, or legislative priority advanced by an In-House Government Affairs Team.

Restricted Data: classified information, Controlled Unclassified Information, ITAR or EAR controlled technical data, protected health information, PCI cardholder data, Social Security

numbers, or other data subject to special legal or government handling restrictions not expressly supported in the Order Form.

Slot Fee: the monthly access fee for Portfolio Slots, calculated as the Slot Rate multiplied by Client's contracted Portfolio Slot count.

Slot Rate: the monthly per-Portfolio-Slot rate specified in the Order Form, which is two hundred dollars ($200.00) per Portfolio Slot per month unless the Order Form states a different rate.

Submission: a congressional submission, NDAA authorization request, appropriations ask, Congressionally Directed Spending request, or other legislative or administrative filing prepared or executed through the System.

Submission Workflow: the gate-controlled workflow through which Client prepares, reviews, approves, and executes Submissions.

System: the Capiro software platform, including associated AI Models, databases, Congressional Office Data, Submission Workflows, APIs, and services made available to Client, as updated from time to time.

System Output: all content generated by the System in response to Client inputs, including Client Output and Predictive Analytics.

Usage Data: aggregated or de-identified data derived from Client's interaction with the System. Usage Data excludes Client Content and Client Output text and cannot reasonably be associated with Client or any individual user after de-identification.

SECTION 2: ACCESS AND LICENSE GRANT

2.1 Grant of Access.

Subject to Client's compliance with this Agreement and timely payment of all fees, Capiro grants Client a limited, non-exclusive, non-transferable, non-sublicensable right to access and use the System during the Term for Client's internal government affairs, client service, and submission workflows.

2.2 User Access and Credentials.

Capiro will issue login credentials to individuals Client authorizes to access the System ("Authorized Users"). Each Authorized User is bound by this Agreement and the Terms of Service as a condition of access, and Client is responsible for ensuring each Authorized User complies with both. Client is responsible for all activity occurring under its Authorized Users' credentials and remains responsible for its Authorized Users' acts and omissions in connection with the System as if they were Client's own. Client shall maintain the confidentiality of credentials, promptly notify Capiro of suspected compromise, and ensure only individuals employed by or contracted to Client are issued credentials. Client shall promptly deauthorize and remove access for any Authorized User who no longer requires it, including departed employees and contractors, and in any event within five (5) business days of the change in status. Capiro is not responsible for activity occurring under the credentials of an Authorized User Client has failed to timely deauthorize.

2.3 Portfolio Slots: Minimum, Expansion, and Mechanics.

- Minimum Commitment. Unless the Order Form states otherwise, the minimum contract size is ten (10) Portfolio Slots.
- What a Slot Covers. A single Portfolio Slot entitles Client to use all generally available platform features for the Profile occupying that slot. Unlimited authorized users may access the System within Client's account unless stated otherwise.
- Slot Expansion. Client may add Portfolio Slots at any time through the System. New slots are billed on a prorated basis from the date of addition through Client's existing contract anniversary, which does not change. Added slots are billed at the Slot Rate then applicable to Client.
- No Downward Adjustment During Term. Client may not reduce its contracted Portfolio Slot count during a Term. Downward adjustments may be made only at renewal.
- Unused Slots. Client is responsible for the full contracted Slot Fee regardless of whether all Portfolio Slots are actively used.

2.4 Restrictions on Use.

Client shall not, and shall not permit any third party to: use the System to develop a competing product; access the System for competitive intelligence gathering or reverse engineering; reproduce, distribute, or sublicense the System; circumvent security features or Approval Gates; use the System to submit false or fraudulent information; introduce malicious code; or use the System in a manner that materially harms Capiro, its clients, or the security of the System.

2.5 System Changes.

Capiro may update or modify features of the System from time to time, and will use commercially reasonable efforts not to materially reduce core purchased functionality without a reasonable substitute or transition path.

2.6 Free Trial and Automatic Conversion.

If the Order Form specifies a Free Trial, Client may access the System at no Slot Fee for the thirty (30) day period beginning on the Trial Start Date (the "Trial"). Client must provide a valid payment method before the Trial begins. Unless Client cancels before the end of the Trial through the in-platform cancellation control or by written notice, the subscription automatically converts at the start of the thirty-first (31st) day (the "Conversion Date") into a twelve (12)-month Term at the Portfolio Slot count (minimum ten) and Slot Rate set forth in the Order Form. Capiro will charge Client's payment method the first Slot Fee on the Conversion Date. Capiro will notify Client of the upcoming conversion, including the Conversion Date, Portfolio Slot count, and first charge amount, at least seven (7) days and again at least three (3) days before the Conversion Date. AI Usage incurred during the Trial is not billed. AI Usage Charges begin accruing on the Conversion Date and are billed in arrears as described in Section 12.3. Capiro reserves the right to apply reasonable fair-use limits on AI Usage during the Trial to prevent abuse, and to limit Client to one Trial per Client relationship. Capiro may decline or terminate a Trial it reasonably believes is duplicative of, or intended to circumvent the limits of, a prior or existing Trial by the same Client or its personnel.

2.7 Electronic Acceptance.

Client may accept this Agreement electronically, including by an "I agree" control and by confirming the plan, Portfolio Slot count, and billing election presented during the System's onboarding flow. Such acceptance, together with the System's timestamped record of it, constitutes Client's signature and intent to be bound, consistent with Section 19.13. The individual accepting represents they are authorized to bind Client. The plan, slot count, and billing election so confirmed constitute the Order Form for all purposes under this Agreement.

SECTION 3: HUMAN APPROVAL GATES AND SUBMISSION AUTHORIZATION

3.1 Mandatory Human Review.

No Submission is initiated, transmitted, or finalized by the System without Client's affirmative human authorization at each required Approval Gate. Client is solely responsible for ensuring only authorized personnel complete Approval Gates and for independently verifying System Output before use.

3.2 Approval as Binding Authorization.

Client's completion of the final Approval Gate authorizing a Submission constitutes Client's representation that it has independently reviewed and verified the Submission, confirmed recipients, and confirmed the Submission is accurate, authorized, and compliant.

3.3 Submission Target Authorization.

Before initiating any Submission, Client shall affirmatively review and authorize the recipients, content, and timing of the Submission.

3.4 Draft Output Disclaimer.

System Output remains Draft Output until Client completes all required Approval Gates. Client assumes all risk associated with use of Draft Output outside the full Submission Workflow.

3.5 Audit Trail.

The System generates a timestamped audit log of Approval Gate completions, available for export during the Term and for thirty (30) days following termination.

SECTION 4: AI OUTPUT DISCLAIMER AND ACCURACY

4.1 Nature of AI-Generated Content.

AI-generated content may contain errors, inaccuracies, or unsupported statements, commonly referred to as hallucination. Except for the limited warranty in Section 14.1, Capiro makes no representation that System Output is accurate, complete, or fit for any particular purpose.

4.2 Client's Independent Verification Obligation.

Client is solely responsible for independently verifying all System Output before any use, submission, or reliance. This obligation is non-delegable.

4.4 No Guarantee of Outcome.

Capiro does not warrant that use of the System will result in successful Submissions, funding awards, or any legislative outcome.

SECTION 5: PREDICTIVE ANALYTICS DISCLAIMER

5.1 Informational Purpose Only.

Predictive Analytics are provided for informational purposes only and do not constitute a guarantee of any outcome or a prediction of any government official's behavior.

5.2 Inherent Limitations.

Predictive Analytics reflect conditions as of the time generated and may not account for subsequent developments.

5.3 Client's Independent Judgment.

Client shall exercise independent professional judgment in evaluating and acting on Predictive Analytics and assumes all risk associated with reliance on them.

SECTION 6: GOVERNMENT DATA AND CONGRESSIONAL OFFICE DATA

6.1 Dependency on Government Sources.

Capiro does not control the timing or accuracy of Government Data as published by government sources.

6.2 Government Data Update Commitment.

Capiro will use commercially reasonable efforts to update Government Data within five (5) business days of confirmed publication. This is a target, not a guarantee.

6.3 Congressional Office Portal Changes.

Office requirements and deadlines are subject to change without notice to Capiro. Capiro does not guarantee the System reflects the most current office requirements at the time of any Submission.

6.4 Data Unavailability.

Capiro cannot provide data not yet released by the relevant government source.

6.5 Third-Party Source Accuracy.

Capiro is not responsible for errors in primary government sources reflected in the System.

SECTION 7: INTELLECTUAL PROPERTY AND DATA RIGHTS

7.1 Capiro Intellectual Property.

Capiro owns all right, title, and interest in Capiro IP. Client acquires no ownership interest in Capiro IP.

7.2 Client Content Ownership.

Client owns all Client Content. Client grants Capiro a limited license to process Client Content solely to provide and improve the System for Client.

7.3 Client Output Ownership.

Client owns all Client Output. Client's ownership does not convey any right in Capiro IP, including the AI Models or workflow logic used to generate Client Output.

7.4 Usage Data and AI Training Restrictions.

Capiro may use de-identified Usage Data for analytics and product improvement. Capiro shall not use Client Content or Client Output to train AI Models made generally available to other Capiro clients without Client's prior written consent, and shall configure provider controls, where available, to disable third-party provider training on Client Content or Client Output.

7.5 Feedback.

Feedback Client provides regarding the System may be used by Capiro without restriction or compensation to Client.

7.6 No Implied Licenses.

All rights not expressly granted are reserved by the applicable owner.

SECTION 8: CONFIDENTIALITY

8.1 Definition.

Confidential Information includes Client Content, Client Output, submission strategies, and non-public information of either Party disclosed in connection with this Agreement.

8.2 Obligations.

Each Party shall protect the other's Confidential Information with reasonable care and use it solely to perform this Agreement.

8.3 Exceptions.

Confidentiality obligations do not apply to information that is public, already known, rightfully received from a third party, or independently developed.

8.4 Required Disclosure.

A Party may disclose Confidential Information if required by law, with prompt notice and reasonable cooperation to seek protective treatment where legally permissible.

8.5 Return and Destruction.

Upon termination, each Party shall return or destroy the other's Confidential Information, subject to the export period in Section 13 and standard backup retention.

8.6 Survival.

Confidentiality obligations survive termination for three (3) years, and indefinitely for trade secrets.

SECTION 9: DATA SECURITY AND TENANT ISOLATION

9.1 Security Commitments.

Capiro shall maintain administrative, technical, and physical safeguards, including tenant isolation, encryption at rest and in transit, access controls, access logging, and the measures described in Exhibit D.

9.2 Tenant Isolation.

Client Content and Client Output are maintained in a logically isolated tenant environment.

9.3 Subprocessors and Third-Party Infrastructure.

The System may use third-party cloud, AI, and payment infrastructure. Capiro remains responsible for subprocessor performance as required under Exhibit C.

9.4 Security Incident Notification.

Capiro shall notify Client of a confirmed Security Incident without undue delay and within seventy-two (72) hours of confirmation, to the extent permitted by law.

9.5 No Absolute Security Guarantee.

No data transmission or storage system is completely secure. Capiro does not guarantee absolute security.

SECTION 10: CLIENT COMPLIANCE OBLIGATIONS

10.1 Independent Compliance Responsibility.

Client is solely responsible for ensuring its use of the System complies with the Lobbying Disclosure Act, FARA, congressional ethics rules, procurement integrity requirements, export control laws, state lobbying laws, and all other applicable obligations.

10.2 No Practice of Law.

Nothing in the System constitutes the practice of law. Client must retain qualified legal counsel for legal matters.

10.3 Restricted Data and Export Controls.

Client shall not upload Restricted Data unless expressly authorized in the Order Form and confirmed in writing by Capiro.

10.4 LDA Auto-Population Disclaimer.

Any LDA field auto-population is a workflow convenience only. Client remains solely responsible for the accuracy of all LDA filings.

10.5 End-Client Authority.

Client represents it has all necessary authority from its represented clients to use the System in connection with those clients.

SECTION 11: CLIENT PORTAL AND PAYMENT PROCESSING MODULE

11.1 Optional Module.

The Payment Module is available only if activated in the Order Form.

11.2 Capiro Is Not a Financial Institution.

Payment processing is provided through third-party processors and does not constitute a regulated financial service offered by Capiro.

11.3 Fund Routing.

Capiro does not hold or have beneficial interest in funds transiting through the Payment Module.

11.4 Payment Module Compliance.

Client is solely responsible for ensuring its use of the Payment Module complies with applicable law.

SECTION 12: FEES AND PAYMENT

12.1 Fee Structure.

Client's fees consist of: (a) Slot Fees for platform access; and (b) AI Usage Charges for AI Usage incurred during the applicable billing period. There are no separate per-user or per-submission fees unless the Order Form states otherwise.

12.2 Slot Fee.

Client shall pay Capiro a monthly Slot Fee equal to the Slot Rate multiplied by Client's contracted Portfolio Slot count. The Slot Rate is two hundred dollars ($200.00) per Portfolio Slot per month. The minimum contracted Portfolio Slot count is ten (10), for a minimum monthly Slot Fee of two thousand dollars ($2,000.00), unless the Order Form states otherwise. Client may elect to prepay the full annual Slot Fee at signing or renewal for a five percent (5%) discount on the Slot Fee component only.

12.3 AI Usage and Metered Billing.

Client's AI Usage is metered and billed as follows:

- Metering. The System tracks Client's AI Usage continuously throughout each billing period.
- Billing in Arrears. AI Usage Charges for a billing period are calculated after the period ends and invoiced in arrears, together with the next Slot Fee invoice.
- No Prepaid Credit System. Capiro does not require Client to prepay for AI Usage or maintain a prepaid credit balance. AI Usage Charges reflect actual usage incurred.
- Usage Pricing Schedule. AI Usage is priced according to Capiro's then-current AI usage pricing schedule, made available to Client within the System or upon written request. Capiro will

provide at least thirty (30) days' notice before any change to the schedule takes effect for Client.

- Usage Visibility. Capiro will provide Client with visibility into accruing AI Usage and estimated AI Usage Charges within the System on a reasonably current basis.
- Optional Usage Cap. Client may request a monthly AI Usage Charge cap through the Order Form or the System. If a cap is set, Capiro will use commercially reasonable efforts to alert Client as usage approaches the cap and may throttle AI-enabled functions once the cap is reached, unless Client authorizes usage above it.
- Invoice Presentation. Invoices will present Slot Fees and AI Usage Charges as separate line items, with a reasonable summary of the usage giving rise to the charge.

12.4 Invoicing and Payment Terms.

Slot Fees are invoiced monthly on the first day of each calendar month unless Client elected annual upfront payment. AI Usage Charges are invoiced monthly in arrears. Payment is due within thirty (30) days of the invoice date. Overdue undisputed amounts accrue interest at the lesser of one and one-half percent (1.5%) per month or the maximum rate permitted by law.

12.5 Taxes.

All fees are exclusive of applicable taxes, which Client is responsible for, excluding taxes based on Capiro's net income.

12.6 Suspension for Non-Payment.

Capiro may suspend access upon fifteen (15) days' written notice of an unpaid undisputed amount, after at least one reminder and an opportunity to cure.

12.7 Rate Protection.

Capiro may not unilaterally increase the Slot Rate during the initial Term. At renewal, Capiro may adjust the Slot Rate or its AI usage pricing schedule with at least sixty (60) days' written notice before the renewal Term begins. Any other change during a Term requires a mutually executed amendment.

12.8 Non-Refundability.

All fees paid are non-refundable except as expressly stated in this Agreement. If Client terminates for Capiro's uncured material breach, Capiro will refund prepaid unused Slot Fees for the terminated portion of the Term.

12.9 Billing Disputes.

If Client disputes an AI Usage Charge in good faith, Client shall notify Capiro in writing within thirty (30) days of the invoice date, describing the disputed charge. The Parties shall cooperate to review the System's usage records for the disputed period. Amounts not in dispute remain due under Section 12.4. If the Parties determine an error occurred, Capiro shall correct the charge and, as applicable, credit or invoice the difference on the next billing cycle. A dispute not raised within thirty (30) days of the invoice date is deemed accepted, except in the case of Capiro's demonstrable billing error.

SECTION 13: TERM AND TERMINATION

13.1 Term.

Each Order Form has an initial term of twelve (12) months and automatically renews for successive one-year terms unless either Party gives written notice of non-renewal at least sixty (60) days before the end of the then-current term.

13.2 Termination for Cause.

Either Party may terminate for uncured material breach on thirty (30) days' written notice. Capiro may terminate immediately for Client's breach of Section 2.4, submission of fraudulent information, or material breach of confidentiality.

13.3 Termination for Convenience.

Client may terminate for convenience on ninety (90) days' written notice. Fees for the remaining Term are non-refundable, and fees through the notice period remain payable. Although each Order Form has an initial twelve (12)-month Term, this Section permits Client to end it early on ninety (90) days' notice, subject to these payment terms.

13.4 Effect of Termination.

Upon termination, licenses terminate, Client shall cease use of the System, and Capiro shall retain Client Content and Client Output for thirty (30) days to enable export, after which they are deleted from production systems.

13.5 Data Export.

Upon request during the Term or within thirty (30) days after termination, Capiro shall provide Client an export of Client Content and Client Output in a machine-readable format within five (5) business days.

13.6 Survival.

Sections 1, 2.4, 3.5, 4, 5, 6, 7, 8, 9, 10, 12, 13.4, 13.5, 13.6, 13.7, 14.3, 15, 16, 18, 19, and Exhibits C and D survive termination.

13.7 Final Invoice.

Upon expiration or termination, Capiro will issue a final invoice covering all Slot Fees and AI Usage Charges accrued through the termination effective date, including any fees payable during a notice period under Section 13.3. The final invoice is due under the payment terms in Section 12.4.

SECTION 14: WARRANTIES AND DISCLAIMER

14.1 Capiro Limited Warranty.

Capiro warrants the System will perform materially in accordance with its documentation and that Capiro will maintain security measures materially consistent with Section 9 and Exhibit D. Client's exclusive remedy is repair, workaround, or pro-rated refund of prepaid unused fees for the period of material non-performance.

14.2 Client Warranties.

Client represents it has authority to enter this Agreement, has rights to provide Client Content, and will use the System in compliance with applicable law.

14.3 Disclaimer of Warranties.

Except as stated in Section 14.1, the System and System Output are provided "as is" and "as available" without warranty of any kind, to the maximum extent permitted by law. Capiro does not warrant the System will be error-free or free from hallucination, or that any Submission will be accepted by any government office.

SECTION 15: LIMITATION OF LIABILITY

15.1 Exclusion of Consequential Damages.

Neither Party is liable for indirect, incidental, special, or consequential damages, to the maximum extent permitted by law.

15.2 Liability Caps.

Except for Excluded Claims, each Party's total liability is capped at the fees paid or payable under the affected Order Form in the twelve (12) months preceding the claim. For claims arising from Capiro's breach of Section 8, Section 9, Exhibit C, or its IP indemnity in Section 16.2, Capiro's liability is capped at the greater of twenty-five thousand dollars ($25,000) or two (2) times the fees paid in the preceding twelve (12) months. Excluded Claims include Client's payment obligations, Client's breach of Section 2.4, indemnification obligations, and fraud or willful misconduct.

15.3 Approval Gate Limitation.

Capiro has no liability for inaccuracies in output or Submissions that Client approved through an Approval Gate, except for Capiro's breach of confidentiality, security, or IP indemnity obligations, or willful misconduct.

15.4 Missed Deadlines and Submission Failures.

Capiro has no liability for Submissions not accepted by a government office, or for missed deadlines caused by Client's delay or by unannounced office changes.

15.5 Essential Basis.

These limitations reflect a reasonable allocation of risk and form an essential basis of the bargain.

SECTION 16: INDEMNIFICATION

16.1 Client Indemnification of Capiro.

Client shall defend and indemnify Capiro against third-party claims arising from Client Content, Client's violation of this Agreement or law, Client's Submissions, or Client's failure to meet compliance obligations.

16.2 Capiro Indemnification of Client.

Capiro shall defend and indemnify Client against third-party claims that the System infringes a patent, copyright, trademark, or trade secret, subject to standard exclusions for Client Content, modifications, and misuse. Capiro's remedies are to procure rights, modify, replace, or terminate and refund, as its sole liability for infringement claims.

16.3 Indemnification Process.

The indemnified Party shall provide prompt notice and reasonable cooperation, and the indemnifying Party shall have control of the defense, with consent required for any settlement imposing liability on the indemnified Party.

SECTION 17: SYSTEM AVAILABILITY AND FORCE MAJEURE

17.1 Availability Commitment.

Capiro will use commercially reasonable efforts to maintain 99% monthly availability, excluding scheduled maintenance, Client-caused outages, third-party outages, and Force Majeure Events.

17.2 Maintenance Windows.

Capiro will provide reasonable notice of scheduled maintenance.

17.3 Third-Party Dependencies.

Capiro is not liable for degraded performance caused by third-party service outages outside its reasonable control.

17.4 Force Majeure.

Neither Party is liable for delay caused by events beyond its reasonable control.

SECTION 18: DISPUTE RESOLUTION AND GOVERNING LAW

18.1 Governing Law.

This Agreement is governed by the laws of the State of Delaware.

18.2 Informal Resolution.

The Parties shall attempt good-faith negotiation for thirty (30) days before formal proceedings, except for emergency injunctive relief.

18.3 Binding Arbitration.

Disputes not resolved informally shall be resolved by binding arbitration administered by JAMS in Wilmington, Delaware, before a single arbitrator experienced in SaaS and technology contracts. Either Party may seek injunctive relief in court to protect confidentiality, IP, or system integrity pending arbitration.

18.4 Class Action Waiver.

Each Party waives any right to bring or participate in a class or representative action.

18.5 Venue for Non-Arbitrable Claims.

The Parties consent to the exclusive jurisdiction of courts in Wilmington, Delaware for matters not subject to arbitration.

SECTION 19: GENERAL PROVISIONS

19.1 Entire Agreement.

This Agreement and its Order Forms and Exhibits constitute the entire agreement between the Parties and supersede prior discussions.

19.2 Order of Precedence.

In case of conflict: (1) a signed amendment; (2) the Order Form, for the commercial terms it addresses; (3) Exhibit C and Exhibit D; (4) other Exhibits; (5) this Agreement.

19.3 Amendment.

This Agreement may be modified only by a signed writing, except that Capiro may update non-material operational policies upon notice.

19.4 Assignment and Change of Control.

Client may not assign this Agreement, whether by operation of law, merger, acquisition, or sale of substantially all assets, without Capiro's prior written consent, not to be unreasonably withheld, except that no consent is required if the successor is not a direct competitor of Capiro and agrees in writing to be bound by this Agreement. Capiro may assign this Agreement in connection with a merger, acquisition, or sale of substantially all of its assets.

19.5 Severability.

If a provision is unenforceable, the remainder of the Agreement remains in effect.

19.6 Waiver.

A Party's failure to enforce a provision is not a waiver unless made in writing.

19.7 Notices.

Legal notices must be in writing to legal@capiro.ai or the address in the Order Form.

19.8 Independent Contractors.

The Parties are independent contractors.

19.9 No Third-Party Beneficiaries.

This Agreement benefits only the Parties and their permitted successors.

19.10 Publicity.

Neither Party may use the other's name or logo publicly without prior written consent.

19.11 Export Compliance and Sanctions.

Each Party shall comply with applicable export and sanctions laws.

19.12 Government End Users.

If Client is a U.S. government entity, the System is "commercial computer software" as defined in FAR 12.212 and DFARS 227.7202.

19.13 Electronic Acceptance and Counterparts.

Client consents to conduct this transaction and to receive notices, invoices, and other disclosures electronically rather than in paper form. This Agreement may be accepted electronically, including through the System's onboarding flow, and such acceptance is deemed an original signature. Client may withdraw consent to electronic delivery of legally required notices by contacting legal@capiro.ai, provided that withdrawal does not affect the validity of Client's prior electronic acceptance of this Agreement.

19.14 Headings.

Section headings are for convenience only.

EXHIBIT A: ORDER FORM

The Order Form under this Agreement consists of the Account Type, Portfolio Slot count, billing election, and other commercial selections Client makes during the System's onboarding flow (the Plan and Billing steps), together with the System's timestamped record of Client's electronic acceptance of this Agreement. This Exhibit states the default commercial terms that apply unless Client's selections state otherwise:

- Subscription Term: twelve (12) months from the Effective Date or Conversion Date, automatically renewing, cancellable for convenience on ninety (90) days' notice (Section 13.3)
- Minimum Portfolio Slots: ten (10)
- Slot Rate: $200.00 per Portfolio Slot per month
- AI Usage: metered and billed monthly in arrears per Capiro's then-current AI usage pricing schedule, no prepaid credit system
- Monthly AI Usage Charge Cap: none, unless Client sets one through the System
- Renewal Slot Rate: $200.00 per Portfolio Slot per month, unless otherwise agreed in a signed renewal amendment

Any Special Terms agreed in writing between the Parties supersede the defaults above to the extent of any conflict.

EXHIBIT B: GOVERNMENT AND FEDERAL CONTRACTOR ADDENDUM

This Addendum applies when the Government Addendum option is selected in the Order Form.

B.1 FOIA and Open Records.

Capiro acknowledges Client may be subject to FOIA or state open records laws. Client shall notify Capiro of relevant requests and cooperate on exemptions where legally permissible.

B.2 Restricted Government Data.

Client shall not upload classified, CUI, ITAR, EAR, or procurement-sensitive data unless expressly authorized and confirmed in writing.

B.3 Procurement Integrity.

Client is solely responsible for compliance with procurement integrity laws applicable to its activities.

B.4 Security Authorization and FedRAMP Status.

Capiro does not represent the System is FedRAMP authorized unless expressly stated in the Order Form.

B.5 Congressional Office Relationships.

Congressional offices using the System for intake are not Clients under this Agreement.

B.6 Government Terms.

No government portal or purchase order term modifies this Agreement unless expressly agreed in a signed writing.

EXHIBIT C: DATA PROCESSING ADDENDUM

C.1 Roles.

Client is the controller and Capiro is the processor with respect to personal information in Client Content and Client Output.

C.2 Processing Purpose.

Capiro processes Client Content solely to provide, secure, and improve the System for Client.

C.3 Categories of Data.

Client Content may include business contact information, government affairs records, and submission materials.

C.4 Duration and Deletion.

Capiro retains data for the Term and the post-termination export period, then deletes it from production systems.

C.5 Subprocessors.

Capiro imposes written data protection obligations on subprocessors and remains responsible for their performance.

C.6 International Transfers.

Processing occurs primarily in the United States unless the Order Form states otherwise.

C.7 Data Subject Requests.

Capiro will provide reasonable assistance for data subject requests relating to Client Content.

C.8 Personnel Confidentiality.

Personnel with access to Client Content are subject to confidentiality obligations.

C.9 Security Measures.

Capiro maintains the measures described in Section 9 and Exhibit D.

C.10 Audits and Information.

Capiro will provide reasonable compliance information upon request, no more than once per year.

C.11 AI Training and Secondary Use.

Capiro shall not use Client Content or Client Output to train AI Models shared with other clients without written consent.

EXHIBIT D: MINIMUM SECURITY MEASURES

- Access Controls: role-based access, least-privilege administration, prompt access removal
- Encryption: in transit and at rest for production data
- Tenant Isolation: logical segregation of Client data from other clients
- Logging and Monitoring: administrative access logging and monitoring for suspicious activity
- Personnel Controls: confidentiality obligations for personnel with data access
- Subprocessor Controls: written data protection agreements with material subprocessors
- Vulnerability Management: commercially reasonable identification and remediation of vulnerabilities
- Backups and Recovery: backup and resilience procedures
- Incident Response: procedures for triage, containment, and notification of Security Incidents
- AI Provider Configuration: controls, where available, to prevent third-party AI providers from training on Client Content